Pre-Lodgement Submission

Proposed Social Housing Development

3–5 Heffron Street & 6 Seymour Street, Tweed Heads South

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I consent to publication of this submission if and when it is uploaded to any public exhibition portal should a Development Application be lodged.

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Documents relied upon in forming this submission

Exhibit	Description	Date
B1	Homes NSW consultation letter	19 Aug 2025
B2	Tweed Shire Council Flood Reports – Lots 2-4 DP530539	17 Sep 2020
B3	NSW Planning Portal Property Reports – Lots 2-4 DP530539	15 Feb 2026
B4	Annotated satellite image showing cadastral boundaries and spatial relationship between subject site, Heffron Street road reserve, and school western boundary	12 Feb 2026
B5	Tweed Heads South Public School Information Pack - Page 4	March 2021
B6	Draft Tweed DCP 2025 (Part D2, Section 2.3.2 – canopy/deep soil)	Oct 2025-Jan 2026
B7	Tweed Heads South Levee and Drainage Study (Draft 2025)	Sep–Oct 2025
B8	Tweed Shire Council Flood Mapping Portal – Climate Change 1% AEP Event depth overlay	16 Feb 2026
B9	Tweed Shire Council Flood Mapping Portal – PMF Event depth overlay	16 Feb 2026
B10	NSW Planning Portal Spatial Viewer — Coastal Management Areas (CEA and CUA) for Lots 2-4 DP530539	18 Feb 2026
B11	Tweed Heads South Levee and Drainage Study (Draft 2025), Figure 42.1 — Flood Planning Constraint Categories (existing conditions)	Sep–Oct 2025
B12	Tweed Heads South Levee and Drainage Study (Draft 2025), Figure 55.1 — Flood Planning Constraint Categories with Lev 01 and Lev 02 (future conditions with combined levee option)	Sep–Oct 2025

1. Introduction

This submission is made in response to Homes NSW's pre-lodgement consultation for the proposed five-storey social housing development at Lots 2–4 DP 530539, Heffron Street, Tweed Heads South. The site is immediately adjacent to Tweed Heads South Public School and a childcare centre, and lies within a levee-protected floodplain.

The provision of appropriate social housing is supported in principle, recognising the genuine housing needs it addresses. No Development Application has been lodged. The purpose of this submission is to identify statutory considerations that must be addressed prior to any development application being lodged, and to assist the consent authority in ensuring that any future application is accompanied by the technical material necessary to enable lawful determination.

Under s 4.15(1) of the Environmental Planning and Assessment Act 1979 (NSW), the consent authority is required to consider the provisions of any environmental planning instrument, the likely impacts of the development (including environmental and social impacts), the suitability of the site, and the public interest. These matters are mandatory considerations. They must be actively addressed and cannot be displaced by policy preference, funding source, or the proponent's status as a public authority.

Where a development standard is proposed to be contravened, clause 4.6 of the Tweed Local Environmental Plan 2014 imposes independent statutory preconditions that must be satisfied before consent may be granted. Those preconditions require demonstrated environmental planning grounds and a reasoned assessment by the consent authority.

It is well established that statutory development standards and planning controls serve a substantive planning purpose and are not merely aspirational targets. The Land and Environment Court has affirmed that compliance with development standards is the starting point for lawful assessment, and that variations require cogent justification grounded in planning merit: *Stockland Development Pty Ltd v Manly Council* [2004] NSWLEC 472; *BGP Properties Pty Ltd v Lake Macquarie City Council* [2004] NSWLEC 399.

This submission therefore proceeds on the orthodox statutory footing that:

- Mandatory considerations under s 4.15 must be addressed in substance;
- Development standards under the LEP cannot be treated as flexible guidelines absent a clause 4.6 justification;
- Flood risk, evacuation safety, coastal constraints, neighbourhood character and sensitive land-use interfaces are not discretionary matters but statutory assessment requirements.

2. Flood Risk and Public Safety

2.1 Site Flood Levels and Planning Controls

The site (Lots 2–4 DP530539) lies behind the Tweed Heads South levee in a recognised flood hazard area. Council Property Flood Reports dated 17 September 2020 record:

Parameter	Level (m AHD)
Existing ground levels	*~1.5–1.8*
Design Flood Level (1% AEP)	*2.6*
Probable Maximum Flood (PMF)	*~5.7-5.8*

Council's Property Flood Reports (Exhibit B2) record floor levels for the former dwellings (surveyed 2012, since demolished) as follows: 3 Heffron Street, 2.350 m AHD; 5 Heffron Street, 2.340 m AHD; 6 Seymour Street, 2.130 m AHD. All three floor levels were significantly below the minimum habitable floor level of 3.1 m AHD and the Design Flood Level of 2.6 m AHD. The site is now vacant following demolition of the former dwellings. This context underscores the importance of ensuring any redevelopment achieves full statutory compliance from the outset, without reliance on any pre-existing non-conforming conditions.

This is consistent with the Tweed Valley Flood Study Update and Expansion (adopted 18 July 2024), which incorporates hydraulic modelling of recent major flood events, including 2017 and 2022.

Council's flood planning policy, informed by the Flood Risk Management Manual (the 2023 Manual), establishes a minimum habitable floor level of 3.1 m AHD (Design Flood Level + 0.5 m freeboard) for this location. The levee system is designed to a 5% AEP standard (a 1-in-20 annual exceedance probability), equating to approximately a 79% probability of at least one exceedance event over a typical 30-year occupancy period under standard probabilistic modelling.[1] This probabilistic assessment is consistent with findings from the 2022 NSW Flood Inquiry regarding levee-protected communities in the Northern Rivers region (NSW Flood Inquiry, August 2022).

Clause 5.21 requires consideration of projected changes to flood behaviour as a result of climate change. The conceptual proposal provides no publicly available details demonstrating how it addresses this mandatory consideration for vulnerable residents in a levee-protected area with known overtopping risks.

Council commissioned the Tweed Heads South Levee and Drainage Study (THSLDS, Draft 2025), a dedicated hydraulic assessment of this levee system publicly exhibited from 9 September to 26 October 2025. As an exhibited planning document, it constitutes a material consideration under s 4.15(1)(e) of the EP&A Act. Any Development Application should be assessed having regard to the THSLDS findings once adopted.

[1] *Calculation derived from standard probabilistic formula: $P = 1 - (1 - p)^n$, where $p = 0.05$ (5% AEP confirmed in Exhibit B2) and $n = 30$ years (typical occupancy period). Result: $1 - (0.95)^{30} \approx 78.5\%$ (rounded to 79%).*

2.2 Development Proposal Flood Compliance Gaps

Clause 5.21 imposes a two-part test: first, the development must not increase risk to life or property from flooding; and second, the development itself must not be unduly exposed to that risk. Both limbs are engaged by the circumstances of this site.

Ground-level car parking at approximately 1.5–1.8 m AHD — at or below the 5% AEP flood level of 1.9 m AHD confirmed in Exhibit B2 — raises a material question of flood-compatible design under clause 5.21. Clause 5.21 requires the consent authority to be satisfied that development on flood-prone land is compatible with the flood hazard and will not adversely affect flood behaviour or safe occupation. The placement of open or unprotected parking areas below the 5% AEP level warrants detailed hydraulic and structural assessment to demonstrate that flood damage, debris hazard, and impediments to evacuation will be minimised.

The conceptual proposal includes ground-level car parking and provides no publicly available details demonstrating:

- Elevation of all habitable floors to at least 3.1 m AHD
- Hydraulic neutrality of a 5-storey structure
- Safe horizontal evacuation pathways for vulnerable residents during levee overtopping or rapid-onset flood events
- Vertical evacuation provisions compliant with NCC Volume 1 and AS 1428.1:2021 accessibility standards
- Maintenance of emergency vehicle access in flood conditions

These requirements are consistent with the Flood Risk Management Manual (the 2023 Manual), particularly Section 3.1 regarding residual risk and evacuation capacity in levee-protected areas, and Section 3.2.2 regarding heightened consequences for vulnerable populations (including those with mobility issues) and evacuation difficulties.

Vertical refuge cannot be treated as a substitute for safe horizontal evacuation pathways, particularly for residents with reduced mobility or cognitive impairment.

These factors affect suitability for intensified residential occupation, particularly for vulnerable residents, including seniors, persons with disability, and families with young children. In the absence of confirmed hydraulic, horizontal evacuation, and vertical refuge compliance, the development would be inconsistent with clause 5.21 (Flood planning) and public interest considerations under s 4.15(1)(b) and (e) of the EP&A Act.

2.3 Statutory Flood and Coastal Obligations

Independently of clause 5.21, Tweed LEP 2014 clause 5.22 (Special flood considerations) imposes mandatory obligations directly relevant to this site.

First, clause 5.22(2)(b) applies squarely to the proposed development itself. The proposed development is on flood prone land, within a levee-protected system subject to a confirmed 5% AEP overtopping risk, and will intensify residential occupation by vulnerable persons — including seniors, persons with disability, and families with young children — who face documented evacuation difficulties in rapid-onset flood events.

This engages clause 5.22(2)(b) directly: the development may cause a particular risk to life and require the evacuation of people. Development consent must not be granted unless the consent authority has considered whether the development will affect the safe occupation and efficient evacuation of the building's own occupants and incorporates appropriate measures to manage risk to life in the event of a flood. This application of clause 5.22 is orthodox and not contingent on any assessment of neighbouring land.

Second, clause 5.22 applies separately to sensitive and hazardous development, which includes early education and care facilities and educational establishments as defined uses. The adjacent Erlibyrds Early Learning Centre and Tweed Heads South Public School both fall within this defined category.

In addition, given the immediate adjacency of a primary school and childcare centre relying on the same constrained evacuation network, the consent authority must consider whether the cumulative evacuation demand generated by the proposed residential intensity materially affects the safe and efficient evacuation of the locality, including those nearby sensitive uses. This cumulative demand involves approximately 32 residential units potentially housing vulnerable persons, combined with the substantial school and early learning centre populations. On either basis, clause 5.22 provides an explicit statutory foundation in the LEP for the coordinated evacuation risk identified above, and is not a discretionary consideration — it is a mandatory pre-condition to the granting of consent.

Separately, all three lots are confirmed by the NSW Planning Portal Spatial Viewer to be located within the Coastal Environment Area as mapped under SEPP (Resilience and Hazards) 2021. Clause 2.10 of that SEPP imposes mandatory obligations before consent can be granted to development in this area. Under clause 2.10(1)(a), the consent authority must consider whether the proposed development is likely to cause adverse impacts on the integrity and resilience of the biophysical, hydrological (surface and groundwater) and ecological environment. Under clause 2.10(2), consent must not be granted unless the consent authority is satisfied the development is designed, sited and managed to avoid those impacts — or if avoidance is not reasonably possible, to minimise them, or if minimisation is not possible, to mitigate them. This avoid → minimise → mitigate hierarchy is a statutory precondition, not a discretionary consideration. Ground-level car parking on Class 2 acid sulfate soils in a levee-protected flood zone will generate stormwater runoff and disturb acid sulfate materials, directly engaging clause 2.10(1)(a) and (c). No stormwater management plan, WSUD assessment, or water quality impact assessment addressing drainage to the Tweed River estuary has been publicly provided.

Additionally, the NSW Planning Portal Spatial Viewer confirms all three lots lie within the Coastal Use Area as mapped under SEPP (Resilience and Hazards) 2021, triggering clause 2.11. This clause requires the consent authority to consider whether the proposed development is likely to cause adverse impacts on overshadowing, wind funnelling, loss of views from public places to foreshores, and the visual amenity and scenic qualities of the coast. Consent must not be granted unless the authority is satisfied the development is designed, sited and managed to avoid those impacts, or if avoidance is not reasonably possible, to minimise them, or if minimisation is not possible, to mitigate them. A five-storey building will cast shadows across the school's Primary Play Space during morning hours and will overlook the play area from multiple residential floors — impacts that engage clause 2.11 directly and require site-specific assessment. No shadow diagram, visual impact assessment, or clause 2.11 justification has been prepared.

The site's location within the coastal zone generally also triggers clauses 2.12 and 2.13. Clause 2.12 requires the consent authority to be satisfied the development will not cause increased risk of coastal hazards on the land or other land. Ground-level car parking on Class 2 acid sulfate soils in a levee-protected flood zone presents a material coastal hazard risk that requires assessment through an acid sulfate soils management plan and coastal impact assessment as mandated by clauses 7.1(3) and 2.10–2.13. Clause 2.13 mandates consideration of the certified Tweed River Estuary Coastal Management Program 2022–2032 in assessing any development within the coastal zone. The conceptual proposal provides no evidence of how it aligns with the CMP's objectives for flood resilience, bank stability, or estuarine water quality.

3. Impacts on Adjacent Educational and Childcare Facilities

In addition to the site's physical hazards, its interface with sensitive educational uses introduces a separate and independent suitability issue.

The site is immediately adjacent to Erlibyrds Early Learning Centre (1 Seymour Street, licensed for children aged 0–5 years) and directly opposite Tweed Heads South Public School and Tweed River High School. Official NSW School Infrastructure documentation (March 2021, Exhibit B5) confirms the school's "Primary Play Space" and early learning facilities are positioned on the western boundary adjacent to Heffron Street. Page 4 of the published site plan specifically labels these active use areas in the western portion of the site.

The interface between the subject site and the school's active outdoor learning areas gives rise to four distinct and cumulative child safety impacts, each of which operates independently of the school's perimeter fencing and requires site-specific assessment that has not been undertaken.

Overshadowing. No shadow diagram has been prepared for the conceptual proposal. A 5-storey building on this site will cast shadows across the school's Primary Play Space during morning hours regardless of any boundary fencing, as shadow travel is unaffected by ground-level barriers. The extent, duration, and seasonal variation of overshadowing cannot be assessed without a site-specific study. Council cannot be satisfied under s 4.15(1)(c) that solar access to the school's outdoor learning areas is adequately maintained in the absence of such a study.

Overlooking. A standard school perimeter fence provides visual screening at ground level only. Upper-floor windows and balconies on a 5-storey building will have direct sightlines over any boundary fence into the Primary Play Space as a matter of geometry. This constrains the ability of school staff to maintain safe and effective supervision of children in the knowledge that the play area is visually accessible from multiple residential floors above. No privacy impact assessment has been prepared.

Traffic and pedestrian conflict. Children are outside the protection of the school fence the moment they pass through the school gate onto the Heffron Street footpath. From that point they occupy the same kerb-side environment as vehicles entering and exiting the proposed development. For traffic safety purposes, the relevant interface is not the school boundary but the kerb line — the point at which children are exposed to vehicle movements generated by the development. School streets involve concentrated, unpredictable child pedestrian movements during arrival and departure periods that standard trip generation rates do not capture. No traffic and pedestrian safety assessment addressing this temporal overlap has been prepared.

Flood evacuation conflict. In a levee overtopping or rapid-onset flood event, vulnerable residents, school students from Tweed Heads South Public School, and infants and toddlers from Erlibyrds Early Learning Centre would share the same limited local evacuation routes once children exit their respective facilities. The convergence of these populations creates a coordinated emergency management challenge that has not been assessed. This risk is not mitigated by the school's perimeter fence, which ceases to be relevant once evacuation begins.

The Land and Environment Court has recognised that where development interfaces with sensitive child environments, a consent authority is entitled to adopt a precautionary approach under s 4.15(1)(e) and require positive demonstration that safety impacts are resolved, rather than assuming acceptability in the absence of evidence (*Vella v Penrith City Council* [2019] NSWLEC 1247). In circumstances where no site-specific expert assessment has been prepared addressing overshadowing, overlooking, pedestrian conflict, and coordinated evacuation risk, Council cannot lawfully treat those matters as neutral or speculative. The absence of probative evidence itself weighs against a conclusion that the proposal is suitable for the site under s 4.15. Further, Tweed LEP 2014 clause 5.22 requires the consent authority, before granting consent, to consider whether the development will affect the safe occupation and efficient evacuation of people. In circumstances where adjacent early education and care and educational establishments rely on the same constrained evacuation network, that assessment necessarily includes the coordinated evacuation implications identified above. The flood evacuation convergence risk identified above is therefore engaged both as a public interest matter under s 4.15(1)(e) and as a mandatory statutory consideration under clause 5.22 .

4. Height, Scale, Character, Zoning Interface, and Landscaping

4.1 Height Limit Non-Compliance and Clause 4.6 Justification Requirements

The proponent's consultation letter expressly invokes Chapter 2, Part 2, Division 1 of SEPP (Housing) 2021 as the applicable assessment framework. MU1-zoned land approximately 140m from the site satisfies the clause 15C(1)(c)(ii) eligibility threshold, confirming Division 1 applies. Division 1's bonus height and FSR provisions under clauses 16 and 17 may therefore increase the operative maximum building height and FSR above the base standards in Tweed LEP 2014 clauses 4.3 (13.6m) and 4.4 (2:1 FSR).

Council should require the proponent to identify and demonstrate the precise applicable maximum height and FSR under Division 1 before assessment proceeds. This is a prerequisite to determining whether clause 4.6 is engaged and, if so, the extent of any contravention requiring justification. No publicly available information has been provided calculating the applicable Division 1 bonus, identifying the resulting operative development standards, or demonstrating that the conceptual proposal complies with them.

If the development exceeds the applicable maximum — whether the base LEP standard or any Division 1 bonus ceiling — clause 4.6 is engaged. Under clause 4.6(3), development consent must not be granted unless the consent authority is satisfied that the applicant has demonstrated:

(a) that compliance with the development standard is unreasonable or unnecessary in the circumstances; and

(b) that there are sufficient environmental planning grounds to justify the contravention.

Clause 4.6(4) further requires the consent authority to record its assessment of those matters. Consent cannot lawfully be granted unless the clause 4.6(3) preconditions are demonstrated and the required assessment is recorded under clause 4.6(4). No clause 4.6 written request or justification addressing these matters has been publicly provided.

Division 1 does not displace the operation of clause 4.6. Even where a bonus development standard applies, any contravention of that standard still requires satisfaction of clause 4.6(3) and recording under clause 4.6(4).

No justification has been provided addressing environmental planning grounds directly relevant to clause 4.6(3)(b), including:

- The predominantly 1–2 storey built character of the locality
- The transition between R3 Medium Density Residential land and adjacent R2 Low Density Residential school land
- The proximity of sensitive educational uses

These considerations are directly engaged under s 4.15(1)(a) and (c) of the EP&A Act and reflect the objectives of clause 4.3 itself. In particular, objective (f) seeks to limit building height to reduce impacts on the natural and built environment, and objective (g) seeks to prevent gross overshadowing. Critically, the objectives of clause 4.3 remain mandatory assessment considerations under s 4.15(1)(a) and (c) regardless of whether Division 1 bonuses apply or whether a clause 4.6 contravention exists. Division 1's bonus provisions facilitate additional height and floor space; they do not authorise outcomes that are inconsistent with the objectives for which the base development standards were imposed.

A five-storey building on this site will, as a matter of geometry, cast morning shadows across the school's Primary Play Space. Any height variation — whether justified under clause 4.6 or enabled by a Division 1 bonus — must therefore demonstrate how the overshadowing objectives of clause 4.3 are satisfied notwithstanding the exceedance.

Compliance with a variation pathway does not neutralise residual amenity impacts, which remain mandatory considerations under s 4.15 and may outweigh numerical compliance where they cannot be adequately mitigated (*Stockland Development Pty Ltd v Manly Council* [2004] NSWLEC 472 at [42]–[48]).

Independently of height and FSR, Division 1 does not displace the mandatory flood planning obligations under clauses 5.21 and 5.22, the coastal obligations under clauses 2.10–2.13 of SEPP (Resilience and Hazards) 2021, or the acid sulfate soils obligations under clause 7.1 (acid sulfate soils) of Tweed LEP 2014. Those obligations apply regardless of which development standard framework governs height and FSR, and must be satisfied before consent can lawfully be granted.

4.2 R3/R2 Zoning Interface – Height, Scale, and Compatibility

The R3-zoned site directly abuts a mix of R3 and R2 land uses:

- Directly opposite on Seymour Street: Erlibyrds Early Learning Centre (R3)
- Across Heffron Street: Tweed Heads South Public School (including pre-school) and Tweed River High School (R2)

The R3/R2 boundary at the school lies approximately 26 m from the site boundary. Clause 5.3 of the Tweed Local Environmental Plan 2014 (which would otherwise regulate development within 20 m of a zone boundary between R2 and R3) does not apply to land within the coastal zone (cl 5.3(3)(b)). Nevertheless, the abrupt visual and functional impacts of a five-storey building on adjoining R2 land demonstrate that the objectives of clause 2.3 of the Tweed Local Environmental Plan 2014 regarding zone compatibility are fully engaged (which require development to be compatible with and complementary to adjoining zones, including the R2 objective of providing housing within a low-density residential environment) even at 26 m This is confirmed by the actual spatial interface and the complete absence of any mitigating SP2 buffer or landscaped separation.

The Heffron Street carriageway provides minimal separation between the zones. There is no SP2 buffer (such as a wide road reserve or parkland) to mitigate height or visual impacts. Unlike typical zone transitions mediated by wide collector roads, parkland, or SP2 infrastructure corridors, this interface is separated only by a standard local road carriageway. The existing school fence runs parallel to the road and forms a physical division between the public footpath and school grounds. This fence aligns closely with the cadastral and zoning boundary, reinforcing direct adjacency and the absence of any meaningful landscaped or spatial buffer. The presence of the fence does not of itself provide any meaningful mitigation of visual bulk, overlooking, or overshadowing impacts associated with a five-storey building form.

The R2 land uses directly across Heffron Street are not incidental to the zone interface question. They include an operational public school with outdoor learning areas positioned on the western boundary adjacent to the site. The overlooking and overshadowing impacts of a five-storey building on those areas engage zone compatibility under clause 2.3 and child safety under s 4.15(1)(b) and (c) simultaneously. These are not separate issues — they are the same interface assessed through two statutory lenses.

A five-storey building at this location does not provide a graduated transition between the R3 and R2 zones. The Land and Environment Court has recognised that compatibility is more readily achieved where changes in height are gradual rather than abrupt (*Project Venture Developments v Pittwater Council* [2005] NSWLEC 191 at [27]). In this context, the objectives of clause 2.3 require development to be compatible with and complementary to the scale and character of adjoining zones, including the low-density residential environment of the R2 land directly opposite.

The Apartment Design Guide (Section 3F) requires a minimum 18 m separation between habitable rooms and balconies for a five-storey building, increasing to 21 m where the building is adjacent to a lower-density residential zone (R2). The design verification statement required under Chapter 4 of SEPP (Housing) 2021 must demonstrate how this standard is satisfied. Any reliance on the road reserve to achieve separation must demonstrate that privacy, overlooking, and overshadowing impacts on school grounds are appropriately mitigated, particularly given the sensitive nature of the adjoining land use.

While Division 1 of SEPP (Housing) 2021 provides non-discretionary standards that prevail over conflicting DCP controls for specific matters (such as parking rates), the precinct character statement in Section B2 – Tweed City Centre of the Tweed Development Control Plan 2008 (Version 2, adopted 26 October 2023) (Southern River Precinct, as identified in Figure 2-2) remains a relevant planning objective. It can inform the consent authority's assessment of character and amenity impacts under s 4.15(1)(b), (c) and (e) of the EP&A Act, even where it cannot be used as a basis for refusal on a non-discretionary standard.

In combination, the LEP zoning objectives, the ADG separation requirements, and the operative Section B2 precinct character statement for the Southern River Precinct all point in the same direction. A five-storey building at this location would create an unacceptable height, scale, and character transition that requires a clear and detailed justification addressing the environmental planning grounds for the proposed height and built form outcome, including how zone objectives and interface impacts are satisfied.

4.3 Parcel Size and Landscaping Obligations

The combined development site area is 2,081.89 m²:

- 3 Heffron Street: 674.50 m²
- 5 Heffron Street: 677.23 m²
- 6 Seymour Street: 730.16 m²

The operative Tweed Development Control Plan (Section A1, Part C, Design Control 2(h)) imposes a binding requirement for residential flat building development that deep soil zones must not be located over structures such as car parks. This prohibition applies to the current proposal irrespective of the draft DCP. Under State Environmental Planning Policy (Housing) 2021 clause 149, the Apartment Design Guide prevails over a DCP only in relation to eight specified matters — visual privacy, solar and daylight access, common circulation and spaces, apartment size and layout, ceiling heights, private open space and balconies, natural ventilation, and storage. Landscaping and deep soil zones are not among them. Additionally, while Division 1 clause 19(2)(c) imposes a 15% deep soil standard, that subclause is disapplied for Chapter 4 development by clause 19(3), with the result that the ADG and operative DCP controls govern — neither of which permits deep soil zones over structures. The operative DCP deep soil prohibition and the ADG's own deep soil requirements therefore apply cumulatively, and neither is displaced.

The recently exhibited Draft Tweed DCP 2025 (public exhibition: 22 October 2025–23 January 2026) is not yet binding but constitutes a material planning consideration under s 4.15(1)(e) of the EP&A Act (*Terrace Tower Holdings Pty Ltd v Sutherland Shire Council* [2003] NSWCA 289 at [81]–[84]). Its Part D2 controls (Section 2.3.2), which apply specifically to Multi-Dwelling Housing and Residential Flat Buildings, impose the following cumulative landscaping obligations for R3-zoned development:

- Minimum landscape area: ≥20% → 416.38 m²
- Minimum tree canopy: ≥15% → 312.28 m²
- Minimum medium trees: 1 per 300 m² → 7 trees (each requiring minimum 8 m canopy spread and 50 m² canopy area, with an unencumbered deep soil zone)
- Deep soil zones: 2 required — rear zone minimum 5 m wide with a minimum depth of 15% of site length (not less than 5.5 m); neither zone to be located over structures or impervious surfaces

Draft Controls C12(b) and C12(c) further require that deep soil zones be free of impervious surfaces and not located on structures including car parks. These draft controls apply to multi-dwelling housing and residential flat buildings — the same development type as proposed — and therefore directly reinforce the operative prohibition.

A 32-unit, five-storey building will require a substantial footprint. On a reasonable layout assumption, ground-level parking for 16 spaces at 0.5 spaces per unit would consume approximately 400–500 m² of impervious surface, including aisles and manoeuvring space. Against the remaining unencumbered ground, the site must simultaneously accommodate 416.38 m² of landscaped area, 312.28 m² of functional tree canopy, 7 medium trees each requiring an unencumbered root zone, and 2 dimensionally compliant deep soil zones — neither of which may overlie any structure or impervious surface. These obligations are cumulative and materially constrain the developable envelope. Detailed demonstration of compliance in combination with ground-level parking and flood-related design constraints is required before an appropriate development intensity can be lawfully determined.

Ground-level car parking would impede natural infiltration, increase stormwater runoff velocity, and conflict with both Water Sensitive Urban Design (WSUD) principles and flood resilience objectives. This tension is amplified by the Draft DCP's explicit hierarchy rule: **Section B3 (Development of Flood Liable Land) prevails in the event of inconsistency with other provisions** — a directive expressly stated in **Part D1, Section 2.3, Control C19 (Dwelling Houses)** and **Part D2, Section 2.2, Control C20 (Multi-Dwelling Housing and Residential Flat Buildings)**. Where flood safety, hydraulic neutrality, and evacuation reliability are engaged, the DCP itself subordinates all other design considerations—including landscaping and parking configurations—to life-safety imperatives.

The Apartment Design Guide (Section 3D) requires 25% of the site area as communal open space (approximately 520 m² on this 2,081.89 m² site), with at least 50% receiving a minimum of 2 hours of direct sunlight between 9 am and 3 pm on 21 June. This operates cumulatively with the operative DCP deep soil prohibition, the Draft DCP 2025 canopy and landscape controls, and the ADG Section 3J on-grade parking constraints, and must be addressed in the design verification statement under Chapter 4 of SEPP (Housing) 2021.

5. Traffic, Parking, and Child Safety Interface

Traffic, parking, and pedestrian safety impacts must be assessed under s 4.15(1)(b) and (c) of the EP&A Act. The subject site directly interfaces with a primary school and an early learning centre, where peak traffic activity coincides with the highest concentration of vulnerable pedestrians.

Chapter 2, Part 2, Division 1 clause 19(2)(e) of SEPP (Housing) 2021 sets non-discretionary minimum parking rates of 0.4 spaces per 1-bedroom dwelling and 0.5 spaces per 2-bedroom dwelling. These are the minimum rates below which Council's non-discretionary protection falls away — they are not a ceiling. Given the site's proximity to MU1-zoned land, the proponent may seek to justify parking provision at or near these minimum rates. Even at those minimum rates, a 32-unit development would generate demand for approximately 13–16 on-site resident spaces depending on bedroom mix, plus a further 6–7 visitor spaces under clause 19(2)(f). Any parking provision below the Division 1 minimum rates would not be protected by the non-discretionary standard and would require the proponent to positively demonstrate acceptability under s 4.15(1)(b) and (c) — a significantly higher threshold in the context of a congested school zone.

Numeric parking provision alone does not resolve the safety interface created by this location.

Even at the Division 1 minimum rates, a 32-unit development would introduce vehicle activity coinciding with school/childcare peak periods. The critical issue is temporal overlap between residential traffic generation and school/childcare peak periods, when Heffron Street experiences elevated pedestrian crossings, short-stay stopping, informal manoeuvres, and circulation conflicts. School streets involve unpredictable child pedestrian movements and high-turnover kerbside activity that standard trip generation rates do not capture. A site-specific traffic and pedestrian safety assessment addressing this temporal overlap has not yet been provided.

Heffron Street operates as a designated school zone subject to a 40 km/h speed limit during morning and afternoon peak periods. This regulatory framework acknowledges the heightened risk environment created by concentrated child pedestrian activity. Any traffic and pedestrian safety assessment must specifically address vehicle movements generated by the development within this school zone context, including the implications for crossing supervisor locations and kerbside activity during regulated speed limit periods.

Heffron Street experiences high kerbside demand during school hours due to school-related drop-off, pick-up, and staff parking demand. Adjacent to Tweed Heads South Public School, solid yellow edge lines impose continuous no-stopping restrictions under Rule 169 of the Road Rules 2014, supplemented by a 24-hour bus zone under Rule 195 and pedestrian crossing approach clearances under Rule 172. On the Tweed River High School frontage, bus zones and time-based No Parking restrictions operate between 8:00am–9:30am and 2:00pm–4:00pm on school days. The only section of Heffron Street where general parking is lawfully permitted is on the residential side opposite Tweed River High School, and that section is itself subject to school-related demand during peak periods. In this statutory context, any assessment of parking provision for the proposed development must include a documented survey of lawful kerbside availability and occupancy during school peak periods, and must demonstrate that the development will not increase unsafe stopping, parking displacement, or pedestrian conflict within the existing school zone environment.

The Transport for NSW Guide to Transport Impact Assessment (TS 00085) requires a TIA to identify and assess significant special use sites such as education facilities as contextual transport generators, avoid survey periods of atypically low demand including school holidays, assess existing on-street parking conditions as a required input to parking demand estimation, and consider driveway conflict risks where heavy pedestrian movement, bus stops, or intersections are present — with driveway geometry assessed against AS/NZS 2890.1 Parking Facilities. Any traffic assessment prepared for this development must demonstrate compliance with these methodological requirements.

The Land and Environment Court has consistently held that compliance with numeric planning controls does not outweigh demonstrated safety risks or unacceptable site impacts (*BGP Properties Pty Ltd v Lake Macquarie City Council* [2004] NSWLEC 399; *Vella v Penrith City Council* [2019] NSWLEC 1247). The consent authority must be positively satisfied that child safety risks are acceptably mitigated, not merely that parking ratios comply.

No site-specific evidence has been provided demonstrating that the proposed intensity of development can be accommodated without increasing safety risk to children, carers, residents, and school traffic. In the absence of a detailed traffic and pedestrian safety assessment addressing peak overlap conditions, it would be difficult for Council to be satisfied under s 4.15(1)(a), (b), (c), and (e) that the development would maintain safe access arrangements or protect the public interest.

6. Pre-Lodgement Requirement for Technical Evidence

The matters identified above are not abstract planning concerns; they are technical risks requiring expert verification before a consent authority can lawfully form a state of satisfaction under s 4.15 of the Environmental Planning and Assessment Act 1979.

A consent authority must reach a lawful state of satisfaction, based on probative and site-specific evidence, that the development is acceptable having regard to the statutory considerations in s 4.15(1).

The technical studies required by this submission are preconditions to the formation of the requisite states of satisfaction under clauses 5.21 and 5.22 and s 4.15 — they cannot be deferred to conditions of consent without circumventing the statutory framework those clauses establish.

This requirement aligns with published guidance of Tweed Shire Council, which identifies pre-DA consultation as Stage 1 of the development process and encourages early engagement for larger or more complex proposals. Early provision of the technical studies identified below is therefore consistent with Council's recommended process for ensuring that any Development Application is complete and properly informed.

Accordingly, the following studies should be provided prior to determination of any DA:

Flood and Hydraulic Assessment

Council already holds recent flood and coastal modelling sufficient to enable assessment under:

- State Environmental Planning Policy (Resilience and Hazards) 2021 clauses 2.10–2.13; and
- clauses 5.21 (Flood planning) and 5.22 (Special flood considerations).

That existing modelling — comprising the Tweed Heads South Levee and Drainage Study (Draft 2025) (Exhibit B7), Council's flood mapping portal data (Exhibits B8 and B9), and Council's Property Flood Reports (Exhibit B2) — establishes that the site's 1% AEP Design Flood Level of 2.6 m AHD exceeds existing ground levels, and that the site is subject to significant flood constraint under both existing and future conditions. Any hydraulic assessment commissioned by the proponent must engage with and respond to these existing Council findings — it cannot substitute for them or proceed as if they do not exist.

The proponent's obligation is to demonstrate how the proposed development performs against the standards and thresholds established in that existing data, rather than to commission parallel modelling disconnected from Council's adopted framework.

A detailed flood impact and hydraulic assessment should include:

- Confirmation of habitable floor levels against Council's Property Flood Reports;
- Demonstration of hydraulic neutrality of the proposed structure;
- Consideration of projected changes to flood behaviour as required by clause 5.21;
- Assessment of whether the development may cause a particular risk to life requiring evacuation, as required by clause 5.22;
- Assessment of ground-level car parking design in relation to the confirmed 5% AEP flood level (1.9 m AHD), including demonstration that any parking areas below that level are flood-compatible, structurally resilient, and do not compromise safe pedestrian or vehicular access during flood events;
- A Water Sensitive Urban Design (WSUD) plan addressing stormwater management, water quality treatment, and drainage impacts, demonstrating compliance with clause 2.10 (hydrological impacts), the Tweed River Estuary Coastal Management Program 2022–2032, and the Flood Risk Management Manual 2023;
- Assessment of coordinated evacuation planning for the combined residential, school, and childcare populations sharing local evacuation routes during flood events, having regard to the requirements of clause 5.22 in respect of adjacent educational and early education land uses, including modelling of evacuation timing, route capacity, and potential network bottlenecks under levee overtopping scenarios.

These flood-related constraints directly inform the feasible built form envelope on the site and must be assessed in conjunction with the interface considerations identified in Section 4.2.

Development Standards Under Division 1

A clear demonstration of applicable development standards under Division 1 of State Environmental Planning Policy (Housing) 2021 is required, including:

- Identification of the affordable housing component percentage;
- Calculation of the resulting bonus entitlement under clauses 16 and 17; and
- Identification of the operative maximum building height and floor space ratio against which the proposal is to be assessed.

Without this calculation being transparently demonstrated, Council and the community cannot assess whether the applicable development standards are met or whether clause 4.6 is engaged, and Council cannot form a lawful state of satisfaction as to those standards.

Traffic and Pedestrian Safety Assessment

A traffic and pedestrian safety assessment addressing:

- School and childcare peak periods;
- Lawful on-street parking supply and occupancy;
- Driveway location and conflict points;
- Safe movement of vulnerable road users; and
- Temporal overlap between development-generated traffic and school arrival and departure periods, including assessment of kerbside conflict within the 40 km/h school zone on Heffron Street.

These transport assessments must be prepared having regard to the Transport for NSW Guide to Transport Impact Assessment (TS 00085) and should demonstrate compliance with its methodological requirements.

Overshadowing and Privacy Analysis

Overshadowing and privacy impact analysis for adjacent educational and childcare facilities, including:

- Solar access impacts on school outdoor learning and play areas;
- Visual privacy impacts from upper levels; and
- Compliance with clause 2.11 (Coastal Use Area) of the Resilience and Hazards SEPP in relation to overshadowing and visual impacts.

These matters compound the zone interface and graduated transition issues identified in Section 4.2.

Acid Sulfate Soils and Geotechnical Assessment

The site is Class 2 Acid Sulfate Soils under clause 7.1 of the Tweed LEP 2014. Consent must not be granted unless an Acid Sulfate Soils Management Plan prepared in accordance with the Acid Sulfate Soils Manual is provided where triggered.

A geotechnical and foundation engineering report should address:

- Excavation and basement or footing design;
- Potential lowering of the water table; and
- Acid sulfate soil risks associated with a five-storey structure and ground-level parking.

Coastal Environment Impact Assessment

All three lots are mapped within the Coastal Environment Area and Coastal Use Area under the Resilience and Hazards SEPP. A coastal environment impact assessment should address:

- Hydrological and ecological impacts (clause 2.10);
- Overshadowing and visual amenity impacts (clause 2.11);
- Coastal hazard risk (clauses 2.12 and 2.13); and
- Consistency with the certified Tweed River Estuary Coastal Management Program 2022–2032.

No such assessment has yet been prepared.

Design Verification Statement

A design verification statement prepared by a qualified designer confirming compliance with the design quality principles in Chapter 4 of the Housing SEPP and achievement of the objectives of the Apartment Design Guide, including:

- Solar access;
- Visual privacy;
- Landscape integration; and
- Built form response to adjoining educational land

The design verification statement must not be prepared in isolation from the specialist technical studies required by this submission. Specifically, it must:

- Demonstrate ADG compliance (Sections 3D, 3F, and 3J) in the specific site context, including the school and childcare interface, flood design constraints, and deep soil limitations;
- Explain how the height, separation, and communal open space outcomes remain consistent with the objectives of clause 4.3 and the child safety considerations identified in Section 3 of this submission;
- Confirm that the architectural response has been informed by the specialist flood, evacuation, and coastal reports required by Section 6, and not prepared independently of those findings; and
- Confirm compliance with the Livable Housing Design Guidelines (silver level minimum), which constitutes the mandatory minimum for new Class 2 residential buildings under Part G7 of the National Construction Code (Volume One), having particular regard to step-free evacuation access and mobility provisions for residents with disability in a flood-affected location where safe evacuation is a clause 5.22 precondition.

Vertical Evacuation and Disability Access

A vertical evacuation and disability-access assessment demonstrating compliance with:

- NCC Volume 1 egress and access provisions; and
- AS 1428.1:2021.

All technical assessments should also take account of the Social Housing Design Requirements (Homes NSW) and the Flood Risk Management Manual 2023 and its associated Toolkit.

Absent these integrated and site-specific technical studies, Council cannot lawfully form a state of satisfaction under s 4.15 that the proposed development is acceptable having regard to flood safety, coastal impacts, site suitability, built form interface, and the public interest.

7. Requested Pre-Lodgement Actions

I respectfully request that Council:

(a) Require the studies listed in Section 6 prior to public exhibition.

(b) Not grant consent to any application unless satisfied that it demonstrates full flood resilience, appropriate vertical evacuation provisions, and adequate mitigation of impacts on adjacent educational/childcare facilities.

(c) Require the proponent to submit a Statement of Consistency with the Tweed Heads South Levee and Drainage Study (2025) addressing how the proposal responds to the site's flood planning constraint classification and the precinct-scale findings in Table 36 concerning residential intensification and evacuation capacity.

(d) Consider whether alternative sites or reduced built form configurations could achieve equivalent housing outcomes with materially lower flood risk and sensitive-use impact.

The available evidence suggests that either a reduced built form or an alternative site may better achieve social housing objectives while maintaining statutory safety margins.

8. Strategic Planning and Flood Engineering Context

8.1 Council's Growth Management and Housing Strategy — Removal of Change Option 22

On 3 April 2025, the Tweed Shire Council Planning Committee carried an alternate motion moved by Mayor Cherry and Deputy Mayor Dennis resolving, among other things, to:

"Remove Options Paper V2 Change 22 South Tweed Change Option 22 due to community opposition vulnerability to tidal inundation and flooding concerns (noting this will remove Options Paper V1 Changes 11, 12 and 13 being increased density in South Tweed Heads)."

Change Option 22 comprised the proposed density uplift for the South Tweed Heads Residential Precinct — the precinct within which the subject site at 3–5 Heffron Street and 6 Seymour Street, Tweed Heads South is located. The resolution did not merely defer the change option. It removed it. The broader precinct was retained only as a low-priority future investigation area, explicitly subject to the following condition recorded in the GMHS Options Paper:

"Originally identified as having potential to investigate further development uplift, the area is flood-prone. As such, this change option has been deemed a 'future investigation area' pending the outcome of future flood mitigation strategies, which are underway."

The proposed Homes NSW development is a development uplift proposal — a five-storey residential flat building on a consolidated site of 2,081 square metres — in the precinct Council has formally resolved cannot support density uplift until flood mitigation strategies are resolved. That resolution predates the Homes NSW consultation letter by approximately four months. Nothing in the flood mitigation position has changed in the intervening period. The precondition for lifting the deferral has not been satisfied.

This resolution engages ss 4.15(1)(a) and 4.15(1)(e) of the Environmental Planning and Assessment Act 1979 directly. A consent authority granting development uplift consent in a precinct its own planning committee has formally resolved cannot proceed pending flood mitigation acts inconsistently with its own adopted strategic framework and with the public interest as documented in that framework.

8.2 Tweed Heads South Levee and Drainage Study (Draft 2025) — Flood Engineering Findings

Council commissioned Catchment Simulation Solutions to prepare the Tweed Heads South Levee and Drainage Study (Draft 2025) (the Levee Study). This study is the primary technical document underpinning the flood mitigation strategies referenced in the GMHS resolution. It is the document the April 2025 resolution was awaiting. Its findings have now been published in draft form and are directly determinative of whether the precondition for development uplift in the South Tweed Heads Residential Precinct has been satisfied.

Although the Levee Study remains in draft form, it constitutes Council's most recent commissioned expert flood engineering analysis, prepared by specialist hydraulic engineers using current TUFLOW modelling. It represents the technical evidence base the GMHS resolution was awaiting. Its draft status does not materially diminish its evidentiary weight as the best available technical evidence before the consent authority — a consent authority departing from its own commissioned expert analysis would be required to identify superior contrary evidence and provide reasons for that departure.

The Levee Study makes four findings of direct relevance to the subject site and precinct.

Finding 1 — Existing levee inadequacy. The existing Tweed Heads South levee was originally designed to a 1954-type flood standard, approximately a 5% AEP level of protection. The Levee Study confirms that sections of the levee have subsided below that standard, such that inundation of some areas of Tweed Heads South is predicted during a 20-year ARI (5% AEP) event. The most significant overtopping point is located near the South Tweed Sports Club, where 0.3 metres depth of water is predicted across the levee crest during the 1% AEP flood. This confirms and deepens the levee inadequacy findings relied upon in Section 2.1 of this submission.

Finding 2 — FPCC Category 1 classification under existing conditions. Figure 42.1 of the Levee Study (Exhibit B11) — Flood Planning Constraint Categories (existing conditions) — classifies the subject site and the surrounding residential fabric of Tweed Heads South, including Heffron Street and Seymour Street, as Flood Planning Constraint Category 1 (FPCC 1). FPCC 1 is the most severely constrained classification under the Australian Institute for Disaster Resilience guidelines adopted in the study. Table 30 of the Levee Study defines FPCC 1 as land functioning as flow conveyance and storage areas in the defined flood event, where the majority of developments and uses have adverse impacts on flood behaviour and where uses and development should be limited to those compatible with maintaining flood function.

Finding 3 — FPCC Category 1 classification under the best-performing future mitigation scenario. Figure 55.1 of the Levee Study (Exhibit B12) — Flood Planning Constraint Categories with Lev 01 and Lev 02 — maps the flood planning constraint categories assuming full implementation of the recommended combined levee upgrade option at an estimated cost of $29 million. This is the best-performing flood mitigation scenario the study assesses. With that optimal scenario in place — which is itself unfunded and has not proceeded to detailed design — the subject site and the Heffron Street and Seymour Street locality remain classified as FPCC Category 1. There is no improvement in the constraint classification at the site under the best available mitigation scenario.

Finding 4 — Table 36 explicit guidance on Change 22. Table 36 of the Levee Study provides planning guidance on precincts identified in the Growth Management and Housing Strategy. The entry for Change 22 — South Tweed (future investigation area) — states:

"This area is significantly flood constrained with most of the area currently exposed to FPCC category 1. Inclusion of the levee would reduce some areas to FPCC category 2 with limited areas of FPCC category 3. However, a significant proportion of the area would still fall under FPCC category 1 with the levee in place. Therefore, intensification of development would still be difficult to support."

Council's own flood engineers conclude — in the technical study the GMHS resolution was awaiting — that development intensification in Change 22 remains difficult to support even after the full $29 million combined levee option is implemented. The precondition for lifting the GMHS deferral has not been met. On the engineers' own analysis, it may not be met without a long-term program of road network elevation — including Minjungbal Drive and Dry Dock Road — that the study identifies only as a long-term strategy.

A proponent may contend that Table 36 addresses precinct-scale strategic uplift rather than site-specific development under SEPP (Housing) 2021, and that clause 5.22 compliance can be achieved through site-specific floor level, evacuation, and hydraulic neutrality measures. That contention does not withstand scrutiny. The proposed 32-unit residential flat building on this site represents precisely the form of residential intensification to which Table 36 refers — increased residential population density in FPCC Category 1 land, increasing the number of persons requiring evacuation through constrained routes during a levee overtopping event. This is not a strategic preference — it is a technical finding about evacuation capacity under flood conditions. That finding is directly engaged by this proposal, which increases residential population density within FPCC Category 1 land and therefore increases evacuation demand on the same constrained network.

Taken together, the GMHS resolution and the Levee Study findings engage clause 5.22 of the Tweed LEP 2014 at the highest level of probative force. Clause 5.22 requires the consent authority, before granting consent, to be satisfied the development will not cause a particular risk to life and will not impede the efficient evacuation of people. In the face of that evidence, a consent authority would require compelling contrary technical evidence — prepared at a site-specific and precinct scale, and independently verified — before it could lawfully form the state of satisfaction required by clause 5.22. The current absence of any such evidence means that state of satisfaction cannot presently be formed.

8.3 HDA SSD Pathway — Ineligibility by Reason of Flood Planning Area

Any attempt to declare the proposal State significant development via the Housing Delivery Authority Expression of Interest pathway would fail on published eligibility criteria. The HDA SSD criteria document (Department of Planning, Housing and Infrastructure, July 2025) states, under Objective 3 — Well-located, that a proposal site must not be located "on land in a flood planning area" as defined in the NSW Government's Flood Risk Management Manual. This is the published exclusion criterion in the precise words used by the Department. The subject site is confirmed within the Tweed Heads South flood planning area by Council's Property Flood Reports (Exhibit B2). The exclusion applies on its terms.

The site's FPCC Category 1 classification under both Figure 42.1 (existing conditions) (Exhibit B11) and Figure 55.1 (future conditions with the best-performing combined levee option) (Exhibit B12) further confirms the flood planning area status at both present and anticipated future conditions. The HDA pathway is not available to the proponent as a matter of published government policy.

If State significant development status is sought instead via Schedule 1 clause 26 of the State Environmental Planning Policy (Planning Systems) 2021 — by reason of estimated development cost exceeding $30 million — the mandatory flood planning provisions in clauses 5.21 and 5.22 of the Tweed Local Environmental Plan 2014, the coastal management provisions in clauses 2.10 to 2.13 of the State Environmental Planning Policy (Resilience and Hazards) 2021, and the mandatory assessment requirements under section 4.15 of the Environmental Planning and Assessment Act 1979 remain fully engaged regardless of pathway. SSD status does not displace these mandatory obligations — it merely relocates assessment to a more scrutinised forum — noting that where the application is made by or on behalf of a public authority such as Homes NSW, the Minister rather than the Independent Planning Commission would be the consent authority under clause 2.7(1) of the State Environmental Planning Policy (Planning Systems) 2021 — where the evidentiary standards applied to flood risk and life safety are no less demanding than those applicable to local assessment.

Any future planning proposal purporting to amend the flood provisions applicable to this site, reclassify its hazard category, or alter the applicable development standards through a targeted LEP amendment would require separate public exhibition and community participation under Schedule 1 of the EP&A Act. Such a proposal would need to be assessed against the flood engineering evidence Council has itself commissioned and published, and against the strategic planning determination Council's own committee has formally recorded. The submitter reserves the right to participate in any such process.

9. Conclusion

While SEPP (Housing) 2021 may limit aspects of Council discretion, safety, amenity, zone compatibility, and statutory compliance remain mandatory planning considerations. This submission identifies three primary, non-displaceable constraints:

- **Flood safety** – ground floor and vertical evacuation risks, levee overtopping probability, and coordinated evacuation for co-located sensitive uses (Tweed LEP 2014 clauses 5.21 and 5.22; Flood Risk Management Manual (the 2023 Manual), Sections 3.1 and 3.2.2; NCC Volume 1, Part D; AS 1428.1:2021)
- **Sensitive-use impacts** – overshadowing, privacy, and traffic conflicts affecting schools and childcare facilities, including mandatory obligations under SEPP (Resilience and Hazards) 2021 clause 2.11 (Coastal Use Area) as detailed in Section 2.3
- **R3/R2 zone interface** – abrupt density transition incompatible with adjacent low-density educational environment

While Division 1 of SEPP (Housing) 2021 may permit bonus height and floor space ratio, these provisions do not displace the three identified non-displaceable constraints — flood safety, sensitive-use impacts, or the R3/R2 zone interface — all of which remain mandatory assessment considerations regardless of the applicable development standard framework.

Sensitive-use impacts remain material for the adjacent educational and childcare facilities, including the extended Primary Play Space at Tweed Heads South Public School, which is subject to significant inundation risks. Council's own flood mapping portal confirms that under the Climate Change 2100 1% AEP event the school grounds are inundated to 1–2 m with no visible dry evacuation route. The Primary Play Space of the adjoining school is mapped within the PMF flood extent and is subject to approximately 4 metres of inundation at PMF based on Council's depth overlay mapping (Exhibits B8, B9).

The extended period since completion of the school upgrade in September 2024 emphasises the importance of creating a pre-lodgement record to ensure these matters are considered before any Development Application is submitted.

Additional considerations include the operative Tweed Development Control Plan mandatory deep soil zone requirements (Section A1, Part C, Design Control 2 – Site Configuration, Deep Soil Zones) and Draft Tweed DCP 2025 Part D2 landscaping obligations (Section 2.3.2 — ≥15% tree canopy and minimum 7 medium trees for R3-zoned development). The site's location within the Coastal Environment Area and Coastal Use Area (confirmed by NSW Planning Portal) independently engages SEPP (Resilience and Hazards) 2021 clauses 2.10, 2.11, 2.12 and 2.13, requiring the consent authority to assess hydrological and ecological impacts, overshadowing and visual amenity impacts on the adjacent school, coastal hazard risks from ground-level parking and impervious surfaces, and consistency with the certified Tweed River Estuary Coastal Management Program, with all impacts to be avoided, minimised or mitigated before consent can be granted.

Early consideration of these issues — particularly the operative deep soil zone and flood planning requirements (clauses 5.21 and 5.22), reinforced by the exhibited policy direction in the Draft Tweed DCP 2025 — ensures any Development Application is assessed lawfully, demonstrates that the rights and safety of existing and future residents are adequately protected, and aligns with Council's statutory duties under the EP&A Act.

This submission is made respectfully and in good faith to assist Council in ensuring that any future development application is supported by adequate technical evidence and assessed in accordance with statutory obligations.

Yours faithfully,

Mollie Thorp

6 March 2026

Annexure A – Authorities Table

Authority	Citation	Key Principle / Relevance	Section
Project Venture Developments v Pittwater Council	[2005] NSWLEC 191 at [22]-[31]	Compatibility does not require sameness. The assessment of bulk, scale and height differences is contextual, and compatibility is more readily achieved where changes in height are gradual rather than abrupt.	4.2
Stockland Development Pty Ltd v Manly Council	[2004] NSWLEC 472 at [42]-[48]	Residual amenity impacts may outweigh numerical compliance; precaution required where mitigation inadequate.	1, 4.1
BGP Properties Pty Ltd v Lake Macquarie City Council	[2004] NSWLEC 399	Unreasonable intensity on constrained sites may justify refusal despite theoretical mitigation conditions.	1, 5
Terrace Tower Holdings Pty Ltd v Sutherland Shire Council	[2003] NSWCA 289 at [81]–[84]	Exhibited controls carry significant weight as contemporary policy expression.	4.3
Vella v Penrith City Council	[2019] NSWLEC 1247	Sensitive child interfaces require precautionary approach; positive safety demonstration required; evidence absence weighs against suitability (s 4.15).	3, 5
SEPP (Resilience and Hazards) 2021	Clauses 2.10-2.13	Coastal management hierarchy: avoid/minimise/mitigate for hydrological, ecological, visual, and hazard impacts; CMP consideration mandatory.	2.3, 4.1, 6, 8.3

Annexure B – Site-Specific Supporting Evidence

Documents relied upon in forming this submission.

	Document	Source	Category
B1	Homes NSW consultation letter	Homes NSW	Proponent / Statutory Authority
B2	TSC Flood Reports – Lots 2–4 DP530539	Tweed Shire Council	Council / Statutory Authority
B3	NSW Planning Portal Property Reports – Lots 2–4 DP530539 (15 February 2026)	NSW Planning Portal	Government Authority
B4	Spatial relationship between subject site, Heffron Street road reserve, and school western boundary	Tweed Shire Council ArcGIS Mapping Portal	Submitter-Prepared Evidence
B5	Tweed Heads South Public School Information Pack (March 2021) – Page 4	NSW School Infrastructure	Third-Party Factual Evidence
B6	Draft Tweed DCP 2025 (Public Exhibition Oct 2025-Jan 2026)	Tweed Shire Council (Your Say Tweed)	Exhibited Policy Material
B7	Tweed Heads South Levee and Drainage Study (Draft 2025)	Tweed Shire Council	Council-Commissioned Technical Study
B8	ArcGIS Climate Change depth overlay	Tweed Shire Council ArcGIS Mapping Portal	Council / Statutory Authority
B9	ArcGIS PMF depth overlay	Tweed Shire Council ArcGIS Mapping Portal	Council / Statutory Authority
B10	NSW Planning Portal Spatial Viewer — Coastal Management Areas (CEA and CUA) for Lots 2-4 DP530539	NSW Planning Portal	Government Authority

Annexure B (cont'd) – Site-Specific Supporting Evidence

Documents relied upon in forming this submission.

	Document	Source	Category
B11	Tweed Heads South Levee and Drainage Study (Draft 2025), Figure 42.1: Flood Planning Constraint Categories – existing conditions	Catchment Simulation Solutions for Tweed Shire Council, Draft 2025.	Council / Statutory Authority
B12	Tweed Heads South Levee and Drainage Study (Draft 2025), Figure 55.1: Flood Planning Constraint Categories with Lev 01 and Lev 02 — future conditions with combined levee option.	Catchment Simulation Solutions for Tweed Shire Council, Draft 2025.	Council / Statutory Authority

Key Citations

- **Environmental Planning and Assessment Act 1979 (NSW) –** https://legislation.nsw.gov.au/view/html/inforce/current/act-1979-203
- **Tweed Local Environmental Plan 2014 –** https://legislation.nsw.gov.au/view/html/inforce/current/epi-2014-0177
- **Tweed Development Control Plan (DCP) –** https://www.tweed.nsw.gov.au/development-business/land-use-planning-controls/environment-control-plans/development-control-plan
- **Draft Tweed Development Control Plan 2025 (Public Exhibition Oct 2025-Jan 2026) –** https://www.yoursaytweed.com.au/dcp
- **Tweed Heads South Levee and Drainage Study (Draft 2025) –** https://www.yoursaytweed.com.au/ths-levee-drainage-study
- **Tweed River Estuary Coastal Management Program 2022–2032 –** https://www.tweed.nsw.gov.au/files/assets/public/documents/environment/waterways-amp-coastline/tweed-river-estuary-coastal-management-program-2022-2032.pdf
- **Tweed Valley Flood Study Update and Expansion (adopted 18 July 2024) –** https://www.tweed.nsw.gov.au/property-rates/floods-stormwater/flood-studies-projects/tweed-valley-flood-study-update-expansion
- **Tweed Shire Council – Lodging an Application (current lodgement policy on rejection of incomplete DAs) -** https://www.tweed.nsw.gov.au/development-business/development-applications/lodging-application
- **Tweed Shire Council Development Application Guide (pages 7–8 – pre-DA consultation and DAP process) -** https://www.tweed.nsw.gov.au/files/assets/public/v/2/documents/development-and-business/development-applications/development-application-guide.pdf
- **2022 NSW Flood Inquiry – Volume One Summary (August 2022) –** https://www.nsw.gov.au/sites/default/files/noindex/2022-08/VOLUME_ONE_Summary.pdf
- **Flood Risk Management Manual (the 2023 Manual) –** verified 6 Mar 2026 - https://www.environment.nsw.gov.au/publications/flood-risk-management-manual
- **State Environmental Planning Policy (Housing) 2021** (including Chapter 2 Part 2 Division 1, Chapter 4, and clauses 19 and 149) **–** https://legislation.nsw.gov.au/view/html/inforce/current/epi-2021-0714
- **State Environmental Planning Policy (Resilience and Hazards) 2021 –** https://legislation.nsw.gov.au/view/html/inforce/current/epi-2021-0730
- **State Environment Planning Policy (Planning Systems) 2021 -** https://legislation.nsw.gov.au/view/html/inforce/current/epi-2021-0724

- **Social Housing Design Requirements (Homes NSW) -** https://www.nsw.gov.au/departments-and-agencies/homes-nsw/social-housing-resources/design-requirements
- **NSW Planning Portal Spatial Viewer –** https://www.planningportal.nsw.gov.au/spatialviewer/
- **NSW Road Rules 2014** – https://legislation.nsw.gov.au/view/html/inforce/current/sl-2014-0758
- **NSW Guide to Transport Impact Assessment (TS 00085) -** https://standards.transport.nsw.gov.au/search-standard-specific/?id=AST%20-%200005108:2023
- **The Acid Sulfate Soils Manual (1998) -** https://www.epa.nsw.gov.au/sites/default/files/acid-sulfate-manual-1998.pdf
- **National Construction Code (NCC) Volume 1, Part G7 (Livable Housing Design – mandatory Silver level minimum for Class 2 residential buildings) –** https://ncc.abcb.gov.au
- **Livable Housing Design Guidelines (4th edition, 2017), now administered by Access Institute –** https://accessinstitute.com.au/livable-housing-design/
- **AS 1428.1:2021 – Design for access and mobility (Standards Australia)**
- **AS/NZS 2890.1:2021 - Parking facilities, Part 1: Off-street car parking (Standards Australia)**
- **NSW School Infrastructure – Tweed Heads South Public School Information Pack (March 2021) –** https://www.schoolinfrastructure.nsw.gov.au/content/dam/infrastructure/projects/t/tweed-heads-south-public-school/mar-2021/TweedHeadsSouthPS_InfoPack_Mar21_-_new.pdf
- **Erlibyrds Preschool & Early Learning Centre -** https://erlibyrds.com.au/
- **Tweed River High School –** https://tweedriver-h.schools.nsw.gov.au/
- **Tweed Heads South Public School –** https://tweedhdest-p.schools.nsw.gov.au/
- **Project Venture Developments v Pittwater Council [2005] NSWLEC 191 –** https://www.austlii.edu.au/cgi-bin/viewdoc/au/cases/nsw/NSWLEC/2005/191.html
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End of Submission
Mollie Thorp
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